

25VECV04409 25VECV04409

County: los-angeles

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Department: 107

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Case Number: 25VECV04409 Hearing Date: August 14, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Donelson, et al.,

Plaintiffs,

v.

The Grand Sherman

Oaks, LLC, et al.

Defendants.

Case

Number Department

25VECV04409

107

COURT'S [TENTATIVE] RULING RE:

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Motion for Leave to File Amended
Complaint

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

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Grant

I.

BACKGROUND

On

or about October 2023, Plaintiffs Carl Donelson and Jacqueline Jimenez (“Plaintiffs”) and Defendants The Grand Sherman Oaks, LLC and Greystar California, Inc. dba Greystar dba Veda Luxury Apartments entered into a lease agreement for real property located at 4735 Sepulveda Blvd., Unit 436 (the “Subject Property”). (Second Amended Complaint [“SAC”] ¶¶ 2, 8.) Plaintiffs were overcharged for utilities and amenities. (SAC ¶ 14.) Defendant Greystar California, Inc. dba Greystar dba Veda Luxury Apartments utilizes Defendant R C’s Towing, Inc.’s services to tow vehicles from the Subject Property. (SAC ¶ 22.) Defendant R C’s Towing, Inc. towed Plaintiff Donelson’s vehicle during the Los Angeles wildfires at Defendant Greystar California, Inc. dba Greystar dba Veda Luxury Apartments’ direction. (SAC ¶ 22.) An argument resulted in Plaintiff Donelson’s arrest and charge of felony vandalism after Plaintiff allegedly broke a window. (SAC ¶ 22.)

On

August 6, 2025, Plaintiffs filed a complaint against Defendants The Grand Sherman Oaks, LLC, Greystar California, Inc. dba Greystar dba Veda Luxury Apartments, RealPage Utility Management, Inc., Conservice Metering Solutions, Inc., Sterling Bales, R C’s Towing, Inc., and Does 1 to 100, alleging seven causes of action.

On

October 23, 2025, Plaintiff Donelson filed a first amended complaint against Defendants The Grand Sherman Oaks, LLC, Greystar California, Inc. dba Greystar dba Veda Luxury Apartments, RealPage Utility Management, Inc., Conservice

Metering Solutions, Sterling Bales, R C's Towing, Inc., and Does 1 to 100, alleging eight causes of action.

On

February 23, 2026, Plaintiffs filed a second amended complaint against Defendants The Grand Sherman Oaks, LLC, Greystar California, Inc. dba Greystar dba Veda Luxury Apartments, RealPage Utility Management, Inc., Conservice Metering Solutions, Inc., Sterling Bales, and Does 1 to 100, alleging causes of action for: (1) breach of contract; (2) violation of Civil Code sections 1940.9 and 1950.5; (3) breach of implied covenant of good faith and fair dealing; (4) negligence; (5) negligent infliction of emotional distress; (6) intentional infliction of emotional distress; (7) business and professions code section 17200 et seq.; and (8) conversion.

On

March 11, 2026, Plaintiffs filed a motion for leave to file amended complaint (the "First Motion"). The court denied the First Motion without prejudice. (04/24/26 Minute Order p. 3.)

On

April 24, 2026, Plaintiffs filed another motion for leave to file amended complaint (the "Motion"). As of August 10, 2026, no opposition has been filed.

II.

PROCEDURAL REQUIREMENTS

"A

motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).)

The

motion must be accompanied by a separate declaration, which must specify: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3)

When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b).)

The proposed third amended complaint is attached to the Motion. (Sarkissian Declaration Ex. A pdf pp. 12-119.) Plaintiffs state they included R C’s Towing, Inc. as a defendant in the original complaint and first amended complaint. (Motion p. 2.) Plaintiffs state that they inadvertently removed R C’s Towing, Inc. from the second amended complaint’s caption although they mentioned R C’s Towing, Inc. in the second amended complaint’s body. (Motion p. 2.) Plaintiffs state they intend to reallege and reinsert R C’s Towing, Inc. in the third amended complaint and make corrections regarding the “apostrophe ‘s” in R C’s Towing, Inc.’s name “as mentioned in the second line under the Fourth and Fifth Causes of Action in the [second amended complaint.]” (Motion p. 2, original italics.)

Plaintiffs’ counsel submits a declaration stating the effect of the amendment is to correct R C’s Towing, Inc.’s being inadvertently removed from the second amended complaint’s caption and to correct the position of the apostrophe “s” in R C’s Towing, Inc.’s name. (Sarkissian Declaration ¶¶ 5, 8-9.) Plaintiffs’ counsel indicates the amendment is necessary and proper to correct the erroneous omission of R C’s Towing, Inc.’s name from the second amended complaint’s caption. (Sarkissian Declaration ¶ 5.) Plaintiffs’ counsel indicates the facts giving rise to the amendment were discovered on March 2, 2026, when R C’s Towing, Inc. filed a memorandum of costs and a judgment for dismissal and costs “claiming Plaintiff dismissed them as a Defendant because the Defendant’s name did not appear in the Caption of the SAC . . .” (Sarkissian Declaration ¶ 5.) Finally, Plaintiffs’ counsel indicates the reason the request for amendment was not made earlier was because Plaintiffs’ counsel’s “office sought informal resolution with this Defendant’s counsel but was unsuccessful.” (Sarkissian Declaration ¶ 10.)

The Motion complies with California Rules of Court, rule 3.1324.

III.

LEGAL

STANDARD

“The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations], this policy should be applied only ‘where no prejudice is shown to the adverse party . . . [citation]. A different result is indicated ‘where inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation].” (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487, brackets omitted.)

“Time and knowledge are important factors to be considered when granting or denying a motion to amend.” (Stockton v. Ortiz (1975) 47 Cal.App.3d 183, 194.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527, 530.)

“[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)

IV.

DISCUSSION

Plaintiffs'

counsel's declaration indicates the facts giving rise to the amendment were discovered on March 2, 2026. (Sarkissian Declaration ¶ 5.) Plaintiffs filed the First Motion on March 11, 2026 and filed this Motion on April 24, 2026. Thus, there was no lengthy delay between Plaintiffs discovering the facts giving rise to the amendment and Plaintiffs' filing the First Motion and this Motion.

Plaintiffs

seek to rename Defendant R C's Towing, Inc., who was identified in the captions of the original complaint and first amended complaint but was not identified in the second amended complaint's caption. (Complaint p. 1; First Amended

Complaint p. 1; Second Amended Complaint ["SAC"] p. 1.) R C's Towing, Inc. was identified as a defendant in the body of the second amended complaint. (SAC pp. 1-2, ¶ 5.) No party filed an opposition arguing they will be prejudiced if the court grants Plaintiffs leave to amend. The court finds that no party will suffer prejudice by the proposed amendment.

V.

CONCLUSION

For the foregoing reasons, the Motion is granted. Plaintiffs are directed to file the third amended complaint within ten (10) days of this order.

Dated: August

14, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court